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Case Name: *Peter Xu Zhong v. Pohing Chan, et al.*

Case No.: 23CV424913

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Pohing Chan (“Chan” or “Defendant”) moves for Summary Judgment or, in the alternative, Summary Adjudication in favor of Chan and against Plaintiff Peter Xu Zhong (“Zhong” or “Plaintiff”) under Code of Civil Procedure Section 437c on the grounds that there is no triable issue of material fact as to any causes of action, which are without merit as a matter of law, and Chan is entitled to judgment as a matter of law on Zhong’s Complaint in this independent action in equity to set aside and vacate the default judgment entered in *Chan v. Zhong*, Santa Clara County Superior Court Case No. 20CV369927. Notice of Motion (the “Motion”) at 1:22-2:8 (filed: Nov. 24, 2025). The Motion is based on the following grounds:

1. The default judgment in Case No. 20CV369927 is valid and not void for lack of personal jurisdiction.
2. Zhong cannot meet his burden to rebut the presumption of proper service created by the registered process server’s Proof of Service.
3. Zhong cannot introduce or establish extrinsic fraud or any other equitable basis to set aside the default judgment.
4. Zhong’s claims are barred by laches and other applicable defenses.
5. Zhong’s lacks admissible evidence to support one or more essential elements of his claims.

Id. at 2:9-18.

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Zhong commenced this Case No. 23CV424913 on December 1, 2023 by filing the Complaint against Chan. Next, on December 1, 2023, Zhong filed a first amended complaint (“FAC”) asserting a single claim for Independent Action to Vacate and Set Aside Default Judgment in Case 23CV424913.

According to the FAC, Zhong was a defendant in a separate case—Case No.